

Shayara Bano v. Union of India

Citation: (2017) 9 SCC 1 | Court: Supreme Court | Year: 2017

Coram: 5-Judge Constitution Bench (3:2 Majority) | Subject: Family & Succession | Provisions: Articles 14, 21, 25 & Muslim Personal Law (Sha

I. EXECUTIVE SUMMARY & CASE GLIMPSE

The practice of Talaq-e-Biddat (Triple Talaq) is arbitrary, unconstitutional, and void in law. An instantaneous and irrevocable dissolution of marriage without reconciliation is manifestly arbitrary under Article 14 and cannot claim protection under Article 25 religious freedom.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Articles 14, 21, 25 & Muslim Personal Law (Shariat) Act 1937. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Articles 14, 21, 25 & Muslim Personal Law (Shariat) Act 1937.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Introduced the Doctrine of Manifest Arbitrariness under Article 14 to strike down delegated or personal law practices that are whimsical, capricious, or unguided by reason. Personal laws must conform to Part III fundamental rights.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Declared instantaneous Triple Talaq void ab initio and unconstitutional.
- â€ Expanded Article 14 doctrine to include 'Manifest Arbitrariness'.
- â€ Affirmed gender equality and non-discrimination within matrimonial jurisprudence.